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## FEDERAL REPUBLIC OF YUGOSLAVIA

### Human Rights Developments

The federal government of Yugoslavia dominated by President Slobodan Milosevic continued its brazen disrespect for human rights and international law during 1999, prompting the indictment of Milosevic, three high Serbian officials, and a Yugoslav Army official by the International Criminal Tribunal for the Former Yugoslavia (ICTY) for crimes against humanity.

The most egregious abuses took place in Kosovo during the NATO bombing period from March to June when Serbian and Yugoslav forces conducted a brutal "ethnic cleansing" campaign in which thousands of ethnic Albanians were killed. But these forces also committed many serious abuses in Kosovo before the NATO bombing of Yugoslavia began in March, including summary executions and indiscriminate attacks on civilians.

Abuses also took place after NATO entered Kosovo in June, but this time the victims were Serbs, Roma, and other minorities who did not depart with the government forces, as well as some Albanians considered collaborators with the Yugoslav government. Vengeful Albanians, some of them Kosovo Liberation Army (KLA) soldiers, harassed, beat, abducted, and sometimes killed civilians who stayed behind. The international community present in Kosovo lacked both the mechanisms and the political will to protect the endangered populations or to stop the exodus of Serbs and Roma that ensued.

Ethnic Serbs were also subjected to persecution by the Milosevic government in 1999. Throughout the year, journalists, opposition politicians, and civil society activists were harassed, imprisoned, and sometimes beaten due to their anti-government activities or opinions. One prominent journalist, Slavko Curuvija, was murdered in April, and the police used excessive violence against anti-government street protesters in October.

The most serious abuses clearly took place in Kosovo. After eight months of internal armed conflict between government forces and the KLA, in which an estimated 2,000 ethnic Albanian civilians were killed, a cease-fire was declared in October 1998, and international monitors from the Organization for Security and Cooperation in Europe (OSCE) were deployed. The monitors helped alleviate tensions in the province and provided ethnic Albanians with a certain sense of security. But by early 1999, an increasing number of violent incidents were being reported, some of them provoked by the KLA.

On January 15, Serbian special forces attacked the village of Racak, killing forty-five persons. Although the attack might have been provoked by a KLA ambush of three Serbian policeman a few days before, government forces responded by indiscriminately shooting at civilians, torturing detainees, and committing summary executions. The evidence suggests that special police forces had direct orders to kill village inhabitants over the age of fifteen.

The massacre in Racak, well documented by the OSCE mission, inspired the international community to assume a more determined position vis-a-vis the Serbian and Yugoslav governments' policy of violence in Kosovo. NATO increased its threats of military action, made numerous times before, if attacks on civilians did not stop.

Those threats were implemented after the failed Serbian-Kosovar Albanian negotiations in Rambouillet, France, that took place in February. Serbian and Yugoslav forces took advantage of the negotiating period to expand their presence in Kosovo, apparently in preparation for a major offensive. The military campaign began on March 19, the day the OSCE withdrew from Kosovo. NATO bombing of Yugoslavia commenced five days later.

The following seventy-eight days saw a well strategized and implemented campaign of "ethnic cleansing" by Serbian and Yugoslav forces in which more than 800,000 ethnic Albanians were forced out of the province, mostly into Albania or Macedonia, causing serious crises in both of those countries. On many occasions, groups of Albanians were systematically executed by Serbian special police or paramilitaries. Most of the victims were military-age men, apparently an attempt to eradicate the KLA, but dozens of women and children were also killed. In some cases, large families were executed in their homes, which were then set on fire.

Serbian and Yugoslav forces targeted some prominent Albanians for killing. On March 25, the police detained and executed Bajram Kelmendi, a well-known human rights lawyer, and his two sons. Fehmi Agani, an important and moderate politician, was killed on May 6 as he tried to flee to Macedonia.

Throughout Kosovo, villages were systematically cleansed, with long columns of displaced persons led along roads, into cities, and then out of the country. The vast majority of Albanians were robbed of their valuables, including their identity papers, and many were beaten. Looting and the burning of civilian property usually followed.

Serbian police and paramilitaries, as well as Yugoslav soldiers, also committed rape against ethnic Albanian women. Despite the social taboos associated with rape, some women reported being dragged out of refugee columns and assaulted; in other cases women were separated from the village's men and held for as much as three days in private houses where they were sexually abused. The United States (U.S.) and British (U.K.) governments reported rape camps in Dakovica and Pec, but no hard evidence emerged to support those claims.

NATO and the United Nations (U.N.) estimated that 10,000 Albanians were killed between March and June, but the precise death toll is still unknown. Approximately 1,500 people were still missing as of September; many of them were known to have been taken into custody by government forces between March and June. At least 2,000 other Kosovar Albanians were known to be in Serbian prisons as of October on charges of terrorism or anti-state activities. Abuse in detention was common, especially in the first days of custody, and very few of the detainees were provided access to a lawyer or family visits.

All of the security and military forces in Kosovo cooperated closely with one another to carry out the systematic campaign of ethnic cleansing. While the Yugoslav Third Army in Kosovo, headed by General Nebojsa Pavkovic, was less implicated in the more serious war crimes, such as executions, it clearly participated in the shelling of civilian targets and helped organize the mass expulsions. Most of the egregious abuses in Kosovo were committed by Serbian special police forces, anti-terrorist units, or paramilitaries, some of whom had fought in the Bosnia conflict between 1991 and 1995. There was a clear criminal element in the campaign with security forces and paramilitary volunteers -some of whom were released in March from Serbian prisons-allowed, and even encouraged, to target wealthy Albanians, steal, and loot as a reward for their actions. The systematic nature of the campaign, and the intensity of the violence, left no doubt as to the criminal responsibility of Serbia and Yugoslavia's political and military leadership, including President Milosevic, who was indicted by the ICTY for crimes against humanity on May 27. Others indicted by the tribunal included Chief of the Yugoslav Army's General Staff Colonel General Dragoljub Ojdanic and Serbian Minister of the Interior Vlatko Stojiljkovic.

After a gradual intensification of NATO bombing, NATO and FRY military leaders signed a military technical agreement on June 9 that stipulated the withdrawal of all government forces from Kosovo. Serbian and Yugoslav troops began withdrawing the next day, and NATO troops entered the province on June 12. As of October, 50,000 NATO troops, known as Kosovo Force (KFOR), were in Kosovo as peacekeepers and the United Nations Mission in Kosovo (UNMIK) was in the process of establishing civic institutions and planned ultimately to organize elections.

On June 20, KLA leaders agreed to a wide-scale demilitarization by September 19. After last minute negotiations on September 20, the KLA agreed to transform itself into a lightly armed Kosovo Protection Corps, meant to deal with natural disasters and civic emergencies, although KLA leaders continued to present the corps to their constituents as a defensive force. Military head of the KLA, Agim Ceku, became chief of the corps.

Ethnic Albanian refugees returned to a devastated Kosovo almost immediately after the withdrawal of Serbian and Yugoslav forces, and soon began a series of revenge attacks against the region's minority populations. A wave of arson and looting of Serb and Roma homes quickly deteriorated into harassment and beatings of individuals. Most serious was a spate of abductions and murders of Serbs

since mid-June, including the massacre of fourteen Serb farmers in Staro Gracko village on July 23.

Some of the perpetrators were traumatized Albanians eager for revenge; others were criminal gangs, including men from Albania, taking advantage of the lawless atmosphere in post-war Kosovo. But members of the KLA were also directly implicated in much of the violence. The KLA leadership condemned the revenge attacks on a number of occasions but did not take the necessary measures to bring its soldiers under control. The international community also failed to provide Kosovo's minority populations with adequate protection (see section on the international community).

A new wave of displaced Serbs and Roma from Kosovo met a cool reception in Serbia, which was already hosting approximately 550,000 refugees, the vast majority of them Serbs from Croatia and Bosnia. As of this writing, the Serbian government continued to make it difficult for displaced persons from Kosovo to register their children in Serbian schools, and some local authorities were not willing to provide communal spaces for collective centers. As a discriminated ethnic group, the Roma were particularly susceptible to mistreatment by Serbian authorities. The Montenegrin government was more accommodating and, as of September, approximately 10,000 Roma from Kosovo were in refugee camps there. On August 16, 105 Roma died when a smuggler's boat en route to Italy capsized in the Adriatic Sea.

The end of the Kosovo war shifted attention back to the Yugoslav domestic scene, particularly the Milosevic government's efforts to remain in power and relations with the federation's second republic, Montenegro, which was openly critical of the Milosevic government. The fractured political opposition in Serbia began a series of anti-government demonstrations in July and again in September. In Montenegro, the government proposed a restructuring of the federation to allow the republic more autonomy, and, as of this writing, a tangible independence movement was gaining momentum.

The Serbian and Yugoslav governments responded to developments in Serbia with violence and by restricting the work of opposition politicians, critical media outlets, and civil society activists. As of September 30, the government had used violence against demonstrators on two occasions, beating protesters in Belgrade who were offering no resistance to the police. A number of other political activists were arrested in September and October.

Such harassment had already begun earlier when the government declared a state of war in March. A number of journalists, opposition politicians, and human rights activists were forced to flee the country, or sought refuge in Montenegro during the war.

Throughout 1999, the state-run television and radio continued to broadcast government propaganda, especially aggressive during the war, while police repression and legal actions stymied independent journalists. More than a dozen journalists or editors were fined for violating Serbia's draconian Public Information Law, which is in clear violation of freedom of expression standards in both Serbian and international law. On March 24, the authorities confiscated independent Radio B-92's transmitter and briefly detained the radio's editor. On April 2, local authorities took over the station and appointed its own staff to continue broadcasts, but on July 28 the station began broadcasting from another location under the name B2-92. A number of other media outlets, such as Radio Television Cacak and the newspaper Glas Javnosti, experienced restrictions during the year.

The most violent attack was the April 11 murder by unknown individuals of Slavko Curuvija, editor of Dnevni Telegraph and the magazine Evropljanin, both based in Belgrade. Curuvija, once close to

Milosevic's powerful wife Mira Markovic, had been openly critical of the Yugoslav government. A commentary on the state-run TV news three days before his death accused him of supporting the NATO bombing. Dozens of other journalists were harassed by the police, and some were beaten during the year, including five journalists who were beaten at an anti-government demonstration on September 29.

Police abuse was another essential element of Milosevic's grip on power. Student organizations, such as OTPOR (Resistance), the independent trade union Nezavisnost, and some opposition political activists were all victims of violence by the police during the year.

### **Defending Human Rights**

Yugoslavia has many human rights organizations working on a spectrum of issues, from legal reform to minority rights. The Humanitarian Law Center and the Helsinki Committee in Serbia were, by far, the most progressive in reporting on atrocities in Kosovo. Other Serbian human rights groups were less vocal during the NATO campaign, a period of intense government pressure, or they focused on government restrictions against the media or the political opposition. The Montenegrin Helsinki Committee monitored the treatment of Kosovar Albanian refugees in Montenegro.

Many human rights activists in Serbia and Montenegro experienced pressure and harassment, including police interrogations, but there were no reports of state violence. The head of the Council for Human Rights in Leskovac, Dobrosav Nesic, was imprisoned for one month in May for accusing the local state-run radio station of primitivism. On May 29, three workers for the humanitarian organization Care, two Australians and one Yugoslav, were found guilty of espionage. The foreigners were pardoned on September 1, but the Yugoslav, Branko Jelen, was still in prison serving a six-year sentence.

Human rights groups in Kosovo were under constant pressure from security forces, and many activists were forced to flee or were expelled from Kosovo in the spring. Some activists of the Council for the Defense of Human Rights and Freedoms were killed, including the lawyer Bajram Kelmendi. A number of others remained in prison as of this writing.

### **The Role of the International Community**

#### **North Atlantic Treaty Organization (NATO)**

After repeated threats of military action, NATO began bombing Yugoslavia on March 24, despite the lack of U.N. Security Council approval. Aside from standard military objects, NATO targeted bridges and a few tunnels, oil storage facilities, refineries, civil-military factories, television and radio transmitters, and electrical transformer stations and high voltage towers. Not all of these were appropriate military targets under international humanitarian law.

Although according to the U.S. Defense Department, there were only twenty incidents in which Yugoslav civilians died from bombing, research conducted by Human Rights Watch concluded that the number of civilian casualties was at least four times higher, although the number of deaths was only a third of the 2,000 casualties reported by the Yugoslav government.

NATO troops entered Kosovo on June 12 as Serbian and Yugoslav forces were departing, and approximately 50,000 troops were in Kosovo as of mid-September. Concerns about the safety of KFOR's troops, a lack of experience in law enforcement functions, and, above all, a shortage of available personnel frequently rendered KFOR units unable and unwilling to take the initiatives necessary to build confidence among Serbs and Roma in Kosovo, most of whom fled the province.

#### **United Nations**

On June 10, the United Nations Security Council adopted Resolution 1244, which authorized the deployment of an international civilian administration in Kosovo. By mid-September, the U.N. Mission in Kosovo (UNMIK) had approximately 850 personnel to organize a civil administration,

coordinate humanitarian assistance, promote democratization and institution-building, and foster economic reconstruction.

UNMIK's key failure was its inability to protect Kosovo's non-Albanian population from revenge attacks. The U.N.'s civilian police force was very slow to deploy, largely because individual countries were remiss in providing personnel, leaving KFOR to undertake certain police functions. By mid-September, UNMIK had 1,300 civilian police, and that number was expected to double by November. An Ad Hoc Task Force on Minorities was established with KFOR and other agencies on the ground in an attempt to coordinate protection efforts, but it was unable to stem the tide of Serbs and Roma fleeing the province.

The U.N.'s human rights mechanisms were active throughout the year. The high commissioner for human rights, Mary Robinson, traveled to Kosovo, regularly briefed the human rights commission, and issued numerous statements and two reports. A senior representative from her office was placed in the office of Bernard Kouchner, head of UNMIK. The special rapporteur for Bosnia and Herzegovina, Croatia, and Yugoslavia, Jiri Dienstbier, also visited the region.

After a slow start, the International Criminal Tribunal for the Former Yugoslavia (ICTY) began intensively investigating war crimes committed in Kosovo, eventually leading to the May indictment of Milosevic and four other top officials. ICTY teams were in Macedonia and Albania during the refugee crisis and, after June, they were in Kosovo collecting information to amend and expand those indictments.

## **Organization for Security and Cooperation in Europe (OSCE)**

The OSCE played an active role in Yugoslavia, beginning with the Kosovo Verification Mission deployed in November 1998, which reported publicly on the massacre in Racak (see above). The mission pulled out in March before NATO bombing, and returned in June with NATO forces. As of September, 868 OSCE staff were working on human rights monitoring, media development, and the rule of law. The OSCE was also responsible for running the police training academy which began training the future Kosovo police force.

## **European Union**

After years of equivocating half-steps, the European Union (E.U.) took measures against the Milosevic government in mid-1998, banning investment in Serbia and flights by Yugoslav Airlines, and freezing Serbian and Yugoslav government funds abroad. In April 1999, after the commencement of NATO bombing, the E.U. significantly strengthened its sanctions and added an oil embargo against Yugoslavia and a visa ban on more than three hundred of Milosevic's political, military, and economic allies.

After the war, Yugoslavia was excluded from the E.U.-led Stability Pact for South Eastern Europe as long as Milosevic remained in power, although the E.U. committed to provide economic and political support to Montenegro and Kosovo. In September, the E.U. also announced targeted aid to Serbian cities run by opposition forces.

The E.U. supported Montenegro by providing approximately 40 million Euro (U.S. \$42 million) in 1998-1999, as well as 15.7 million Euro (U.S.\$16.7 million) in humanitarian assistance to deal with the 64,000 IDPs from Kosovo. The E.U. did provide 35.2 million Euro (\$37.4 million) to Serbia for humanitarian assistance and, as of September, it was contemplating 137 million Euro (\$145.6 million) for the reconstruction of Kosovo.

## **United States**

In addition to its substantial contribution to the NATO air campaign and KFOR, the United States government committed considerable resources to investigating and reporting on war crimes in Kosovo. The State Department published regular reports on abuses and FBI investigators were later sent to Kosovo to collect evidence for the ICTY. In April, the U.S. government gave \$500,000 to the tribunal for outreach. In May, the U.S. extended sanctions against Yugoslavia to include a ban on oil

sales and a freeze on the Serbian government's assets in the United States. Substantial funds were also provided for refugee assistance in the region during the conflict and post-war reconstruction, including a temporary resettlement program for Kosovar refugees in the U.S.

After the Kosovo war, President Clinton announced that Serbia would receive no aid as long as Milosevic remained in power. Approximately \$10 million, however, was earmarked for the independent media, local nongovernmental organizations (NGOs), and the labor movement in Serbia. In June, the U.S. offered a reward of up to \$5 million for information leading to the arrest or conviction of persons indicted by the ICTY.

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